

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN FIJI

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Fiji, and one small island proved it against long odds. On **Malolo Island**, in the Mamanuca group, a Chinese-linked company, **Freesoul Real Estate Development**, began building what would have been Fiji's largest resort — some 350 overwater bures and the nation's first casino — at **Wacia**, near **Solevu Village**. Without the environmental approval the law required for the foreshore and marine works, the company dug a channel roughly a hundred metres long straight through the reef, dumped the dredged coral on a neighbour's beach, tore out nearly two hectares of mangroves, and piped raw sewage into the sea. The villagers and neighbouring landowners who depended on that reef and those mangroves did not simply grieve. They alerted the authorities, who issued a stop notice; they went to court, where judges ordered the work halted; they brought in journalists whose reporting drew the eyes of the world. And they won. In **2021 the company was found guilty** — Fiji's first-ever criminal conviction for environmental harm — and in **2022 the High Court imposed the maximum fine the law allowed, one million Fijian dollars**, the judge saying the sentence reflected the community's disapproval of a developer's contempt for the environment. The scale of the plan makes the outcome starker: the resort was to hold around 350 overwater bures and Fiji's first casino, the largest development the country had seen, and it was halted not by the government of the day but by the persistence of the people whose reef and mangroves it was ruining. The company had land-based approval but none for the foreshore works, and it pressed on through a prohibition notice and successive court stop orders — which is exactly why, when the reckoning came, the conduct was found criminal. Ordinary Fijians, using their law and their courts, stopped the country's biggest planned resort and made an example of the company that tried to bully its way past them.

The Malolo fight teaches two things about winning in Fiji — including its hard limits, which this guide will not hide. The first is the pattern: not a single silver bullet, but the combination of every lever — the landowners and the village, the environmental law and its permit process, the regulators, the courts, and the press — pressed together until the developer was stopped and punished. The second is distinctly Fijian. The decisive levers here grow from something most countries do not have: **the land itself belongs to the community**. Around nine in ten of Fiji's land is **iTaukei land** — customary land owned communally by clans, which cannot be sold, only leased with consent. That fact, and the customary rights that come with it over land and sea, give Fijian communities a starting hand few others hold.

But the same story carries an honest warning, and this guide states it plainly. The mangroves and the reef at Malolo were destroyed **before** the conviction; a fine is not a living forest or a healed reef. And the strongest Fijian lever — customary ownership — has a crucial gap: **the minerals under the land belong to the State, not the landowners**. For a mine, customary ownership is not the veto it is for a resort. This guide is written with both truths in view: the real, distinctive power Fijian communities hold, and the specific places where that power runs out.

Most communities do not know **HOW** to make opposition effective. They complain to the Turaga ni Koro, or grumble that "the Board has already leased it," and go no further. They assume the project "is decided in Suva," and so they never use their landowning position, never engage the environmental-permit process, never document the harm, never bring in the regulators or the courts or the press, never sustain the pressure that changes outcomes. They generate a burst of frustration without a plan to sustain it. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Fijian system as it is.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise the vanua and beyond)
STEP 4: LEGAL CHALLENGES	(the lease, the permit, the environment law, the courts)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the vanua's unity sustains the pressure decision-makers respond to; a court filing is a headline and a headline strengthens a case. The community that runs all five together, each reinforcing the others, is the one that wins. Malolo did exactly this — the landowners and neighbours documented the destruction, alerted the regulator, went to the courts, and let the story reach the world, all at once, until the developer was stopped and convicted.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Fiji's give communities a distinctive set:

- **Customary land ownership.** Around 87 to 91 percent of Fiji is **iTaukei land**, owned communally by **mataqali** (clans) and inalienable — it cannot be sold. A project on native land generally needs a lease or licence, and **no dealing in iTaukei land is valid without the consent of the iTaukei Land Trust Board (TLTB)**; the courts have held that a lease made without it is null and void. The ownership itself is layered: the broad clan is the **mataqali**, grouped within a larger **yavusa** and the still-wider **vanua**, with the smaller **tokatoka** below; land is registered to these units, not to individuals, and cannot be sold out of the community. That is why a developer must always, in the end, deal with a group and its structure rather than buy out a single owner — and why the unity or division of that group so often decides the fight.
- **The vanua.** Decisions are communal and chiefly. The **mataqali**, the wider **yavusa** and **vanua**, the village headman (**Turaga ni Koro**), the district chief and the **Roko Tui**, and the **provincial council** are a real social and political structure a project must reckon with.
- **Customary fishing rights (qoliqoli).** Coastal and marine development affects **qoliqoli** — customary fishing grounds — and typically requires a **waiver of fishing rights** from the qoliqoli owning unit, a distinctive coastal consent gate.
- **The Environment Management Act.** Significant projects need an **environmental impact assessment (EIA)** and approval under the **Environment Management Act 2005**, enforced by the **Department of Environment** — the law that convicted Freesoul.
- **The courts.** The **High Court** enforces both the environmental law and the requirement of TLTB consent, and can halt unlawful works.

What This Guide Will Not Pretend

It would be dishonest to promise these levers are all-powerful. **Minerals belong to the State**, so for a mine the customary-ownership veto largely disappears, and landowners are left with a royalty share rather than a refusal — the long, unresolved story of the **Namosi** copper deposit. The **TLTB is a state-appointed trustee**, and landowners have complained that it leased their land against their wishes, so "consent" is mediated, not absolute. The **foreshore and seabed are vested in the State**, so qoliqoli owners hold fishing rights, not ownership. And Fiji's history of political upheaval has, at times, narrowed the space for media and civil society. This guide takes those limits seriously, names them plainly, and shows you how to fight anyway — and, where an outright stop is not realistic, how to secure the delay, the conditions, the exposure, and the record that are often what progress actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A Fijian development project runs through several tracks at once, and each is a place to intervene.

The land and the lease. If the project sits on **iTaukei land**, it needs a lease or licence, and that requires the **TLTB's consent** and, in practice, the engagement of the **landowning mataqali**. This is the first and often strongest gate: without a valid TLTB dealing, the project has no lawful footing on the land.

Environmental approval. Significant projects need an **EIA and approval under the Environment Management Act 2005**, administered by the **Department of Environment**. Foreshore and marine works need approval too — the very requirement Freesoul ignored. This is a formal objection point and, as Malolo showed, one with teeth. The requirement to assess environmental impact before development has been part of Fijian law for well over a decade, and it applies on land and, crucially, in the foreshore and marine areas where reefs and mangroves live — the very zone a coastal developer is most tempted to treat as an afterthought.

Customary marine rights. Coastal projects engage the **qoliqoli** and typically need a **waiver of fishing rights** from the qoliqoli owning unit, handled through the **iTaukei Lands and Fisheries Commission**. In practice a developer must show it has visited the **qoliqoli owning unit** and obtained an endorsement before a waiver of fishing rights is granted, so the marine-rights holders have a real, if limited, say over coastal works — a distinctive second gate that sits alongside the land lease and the environmental approval. It is limited because the foreshore and the seabed themselves are vested in the State rather than the qoliqoli owners, so the say is over fishing rights, not ownership of the water; a long-promised transfer of that ownership to customary owners was floated and then abandoned. Even so, for a coastal resort or marina the fishing-rights waiver is one more consent a developer must secure, and one more point at which an organised owning unit can object, condition, or delay.

Minerals and the State. For mining, the **State owns the minerals** under the Mining Act; a mining lease is a national decision, and landowners' formal power is limited to a royalty share and consultation — the crucial exception to customary control. The point is worth stating baldly, because it catches many communities by surprise: you may own the land absolutely and still not own the gold or copper beneath it. Fiji has softened the rule with a **Fair Share of Mineral Royalties Act**, giving landowners a share of the royalty the State collects, but a share of a royalty is not a veto, and it is why the copper at **Namosi** has been a decades-long grievance rather than a decades-long refusal.

The courts. The **High Court** can enforce the environmental law and the requirement of TLTB consent, and can order unlawful works stopped.

The Journey of a Project

A typical project moves from a proposal, to the **lease or licence over the land**, through the **EIA and environmental approval** and any **fishing-rights waiver**, into the **courts** if challenged, with **national decisions** — especially for minerals — running alongside, and only then to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: the position of the landowning mataqali, a substantive objection at the EIA stage, documentation, and the unity of the vanua. The later doors — a court case, national and international attention — are more demanding but real, as Malolo proved. Find out exactly where your project stands on this path; that tells you which door is open now.

Follow the Land, the Water, and the Money

Behind the project stand a proponent — a foreign developer, a mining company, a tourism operator — its financiers and partners, and the officials and the Board who authorised it. Trace who owns and funds the proponent, who profits, who granted the lease and the permit, and — first — **whose land and whose qoliqoli it sits on.** Two questions unlock most Fijian fights: **Does it have a lawful lease and a genuine environmental approval, or a clear defect?** and **What does it do to the land, the reef, the mangroves, and the water the community depends on?** In Fiji the landowning position and the environmental harm are usually the whole campaign.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **Department of Environment** enforces the EMA and can issue prohibition notices; the **High Court** reviews legality and can halt works; the **TLTB** is meant to protect landowners' interests (and can be pressed to); the **iTaukei Lands and Fisheries Commission** administers customary land and fishing records; the **provincial councils** and chiefly structures carry the voice of the vanua; and national and international civil society, and the press, watch throughout. Each overseer is a separate front, reachable with the same evidence, and — as Malolo showed — a project that ignores them can be stopped and punished even after it has begun. You do not have to choose one door: the same well-documented file — above all the before-and-after of the reef and the land — can go to the Department of Environment, the courts, the Board, the chiefs, the investors, and the press at once, and each front that opens makes the others harder to close. A Fijian campaign's power comes not from any single lever but from pressing several together, with the landowning position and the environmental law as the ones that reach furthest.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Fijian and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project sits on **iTaukei land** (where the landowning position is strong) or turns on **State-owned minerals** (where it is weak), whether there is a **clear environmental or permit defect**, whether the **vanua is united**, whether the **qoliqoli** is engaged, and whether national and international **attention** can be reached. Where a project on customary land meets

a united vanua and an environmental defect, Fiji's levers are strong, as Malolo showed; where it is a State-backed mine, discount the figures and think in terms of consultation, conditions, delay, and the record.

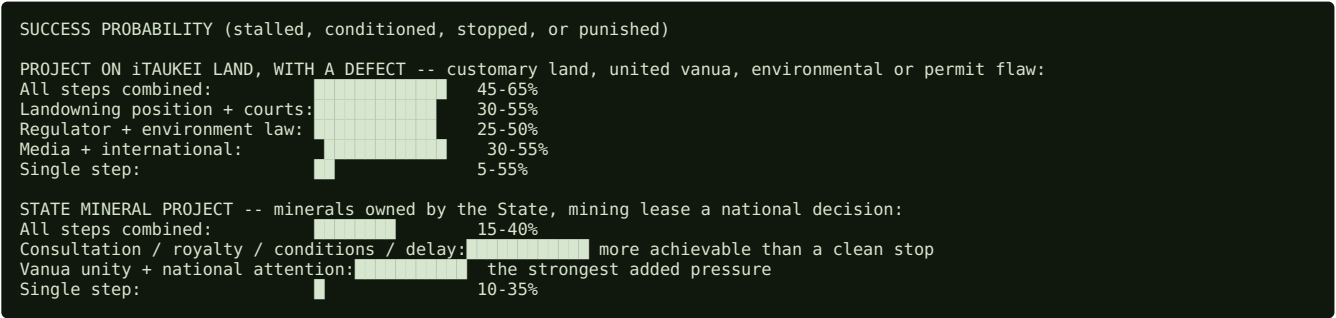
Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Landowning mataqali withholds/conditions consent	30-55%	during dealing	low	Lease blocked or shaped (on iTaukei land)
Objection at the EIA / environment stage	25-50%	during review	low	Approval refused, conditioned, or challengeable
Qoliqoli / fishing-rights leverage	20-45%	during process	low	Coastal project blocked or conditioned
Vanua unity & mobilisation	25-50%	months-years	low	Social and political cost raised
Court challenge (lease or environment)	30-55%	months-years	low-moderate	Works halted; decision reviewed or struck
Regulator complaint (Dept of Environment)	25-50%	weeks-months	low	Stop notice; enforcement; conviction
Media & public campaign	30-55%	ongoing	low	Political cost raised; issue nationalised
International attention	30-55%	months	low	Investors, tourism brand, and reputation engaged
Against a State mineral project	10-35%	months-years	low-moderate	Consultation, royalty, conditions, delay
All steps combined (iTaukei land + defect)	45-65%	1-4 years	low-moderate	Stalled, conditioned, stopped, or punished
All steps combined (State mineral project)	15-40%	1-5 years	low-moderate	Delayed, conditioned; the record built

Key insight: every step together beats any single one, and Fiji's real strengths are distinctive — **customary land ownership**, the **vanua**, the **qoliqoli**, the **Environment Management Act and its EIA**, and the **courts**, amplified by **national and international attention**. Its constraints are specific: **State ownership of minerals** (no veto over a mine), the **TLTB as a mediated trustee**, the **foreshore vested in the State**, and periods of **narrowed civic space**.

A note on cost: the landowning position, engaging the vanua, objecting at the EIA stage, and complaining to the Department of Environment are inexpensive. Court cases cost more but are within reach, especially with legal aid or a public-interest lawyer, and a well-built case can halt works fast. The expenditure that most changes outcomes is the patient organising of a united vanua and a well-kept file — exactly what carried Malolo from a destroyed reef to a landmark conviction.

Effectiveness Visualization



How to read this honestly. The levers that most change outcomes in Fiji are **the landowning position, the environmental law, the vanua, and the courts** where a project sits on customary land — and, for coastal projects, the **qoliqoli**. Malolo shows the ceiling: villagers and landowners stopped Fiji's largest planned resort and won a landmark conviction and the maximum fine. But the mineral rule shows the floor: where the State owns what is being extracted,

customary ownership is not a veto, and the realistic near-term win is consultation, a royalty share, conditions, delay, and a record — as the long Namosi stalemate suggests. Most Fijian fights sit between these poles, and the honest lesson is that customary land, the vanua, and the environmental law are real and distinctive levers — strongest against surface, land-use, and coastal projects, weakest against State-backed mining. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that unites its mataqali, objects at the EIA, documents the reef, alerts the regulator, and reaches the world at once consistently outperforms the one that pins its hopes on any single move.

Step Importance Ranking (When All Combined)

1. **The landowning mataqali and the vanua** — Fiji's decisive lever on customary land; a united landowning unit that withholds or conditions consent, and a vanua behind it, is the strongest starting hand a Fijian community has.
2. **The environmental law and the EIA** — the Environment Management Act and its permit process, the ground on which Malolo was won; a defect here can halt and even punish a project.
3. **The courts and the regulator** — the High Court and the Department of Environment, which enforce both the land and the environment rules and can stop unlawful works fast.
4. **The qoliqoli and marine rights** — for coastal projects, the customary fishing rights that add a second consent gate.
5. **National and international attention** — the press, the tourism brand, and the world's eyes, which reach the investors and turned Malolo into a national reckoning.

What Fijian Campaigns Actually Show

A few patterns recur. **The land is leverage** — customary ownership gives Fijian communities a starting position most lack. **The environmental law has teeth** — Malolo proved a developer can be convicted and fined. **A united vanua is powerful, a divided one is not** — the single greatest determinant is whether the landowning unit holds together. **Attention protects and multiplies** — press and international interest reach the investors and the tourism brand. **But minerals are the State's** — customary ownership does not stop a mine, only shapes it. The through-line: **use the landowning position and the environmental law first; hold the vanua together; engage the qoliqoli for coastal projects; go to the regulator and the courts when the rules are broken; reach the nation and the world — and, where the State owns the minerals, fight for consultation, conditions, and the record rather than expecting a veto.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the resort" or "the mine" goes nowhere; opposition to "the foreshore development being built without the environmental approval the law requires, destroying the reef and mangroves our village fishes" is a case — the case that won at Malolo. Answer five questions.

The Five Core Questions

1. **Whose land and whose qoliqoli is it on?** Is it on **iTaukei land** (and which mataqali owns it), on freehold or State land, or on the **foreshore and qoliqoli**? This is the first question in Fiji, because customary ownership is your strongest lever — and its absence, or the mineral exception, tells you where that lever runs out.
2. **What exactly is proposed, and what does it do to the land, reef, and water?** Name the project and the proponent, and specify the harm: the reef, the mangroves, the rivers, the fishing grounds, the forest, the people who depend on them. At Malolo the harm — a channel cut through the reef, mangroves torn out, sewage in the sea — was the heart of the case.
3. **What lease, permit, and approval does it need — and is there a defect?** Does it have a valid **TLTB lease or licence**, a genuine **EIA and environmental approval**, and any needed **fishing-rights waiver** — or is one missing, defective, or ignored? Freesoul's fatal flaw was doing foreshore works with no environmental approval. A missing or defective approval is often the strongest ground.
4. **Is it a mineral project?** If the resource is **minerals**, remember the State owns them; customary ownership will not veto it, and your realistic levers shift to consultation, environmental conditions, the royalty regime, and delay. Naming this early saves you from pinning hopes on a veto that does not exist.

5. Who decides, who benefits, and who is watching? Which officials and Board granted the lease and permit; who owns, funds, and profits from the proponent; which mataqali, villages, and qoliqoli units are affected and whether they are united; and which regulators, lawyers, chiefs, provincial councils, press, and international allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a foreign developer is building a coastal resort on iTaukei land near a village, cutting into the reef and clearing mangroves, with the villagers alarmed for their fishing grounds.

Working the five questions: it sits on **iTaukei land and the qoliqoli** — so the **landowning mataqali and the fishing-rights owners** are your strongest levers. The harm — **reef and mangrove destruction** threatening the village's food — is the heart of the case. Does it have a valid **TLTB lease** and, crucially, a genuine **environmental approval for the foreshore works**? If not — as at Malolo — that defect is decisive. It is not a mineral project, so customary ownership carries full weight. And the deciders are the Board, the Department of Environment, and — if the rules are broken — the courts, with the press and the tourism brand as pressure points.

Within a weekend you have moved from "we oppose the resort" to a target list: rally the landowning mataqali and the vanua; check and challenge the lease and the environmental approval; document the reef and mangrove harm; engage the qoliqoli owners; alert the Department of Environment; prepare a court challenge; and ready the story for national and international press. That is a campaign, not a complaint — and it is, almost exactly, the campaign that beat Freesoul. Notice what the exercise did: it converted a diffuse alarm into a short list of concrete, assignable tasks — unite the mataqali, check the lease and the approval, document the reef, engage the qoliqoli, alert the regulator — each tied to a specific lever and each of which can begin today. That is the difference the five questions make, and it is what turns worry into a campaign.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A judge, an environment officer, the Board, a chief, a journalist, and a developer's financiers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the project rests on. Obtain the **TLTB lease or licence** (or proof there is none); the **EIA and environmental approval** (or proof it is missing or defective); any **fishing-rights waiver**; and, for a mine, the **mining lease and its terms**. Some is public or obtainable on request; a refusal is itself a documentable fact. The gap between what the paper claims — a lawful lease, an adequate EIA, a genuine consent — and what the law requires and the ground shows is where cases are won. Malolo turned on exactly this: a developer doing foreshore works it had no environmental approval to do. Read whatever documents you obtain against the grain, for what they concede or omit — an EIA that says little about the reef or the mangroves, an approval that covers the land but not the water, a lease whose consent process was thin. In a fight where the harm to the reef is visible from space, the gap between the paper and the reality is usually where the case is strongest.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **site** — the works, the cleared mangroves, the cut reef, the discharge, the affected land and water — and geotag it. Capture **before-and-after** with your own images and with freely available satellite imagery; at Malolo, satellite pictures of the reef before and after the channel were devastating evidence. Sample and record the **water and the reef** — turbidity, sedimentation, dead coral, lost fish and shellfish — with the help of scientists, universities, and marine experts where you can. Log **incidents**: destruction beyond permit, work continued despite a stop order, damage to a neighbour's land or qoliqoli. Record **testimony** from villagers, fishers, elders, and independent experts on the harm to the reef, the mangroves, the fishing grounds, and the livelihoods they support.

Layer 3: The Defects and the Rights

Finally, document the failures of process and the lines the project crosses. Is there **no valid TLTB lease**, or a dealing made without the Board's consent (which the courts have held is null and void)? Is there **no environmental approval, or a defective EIA**, or **work done in defiance of a stop notice or court order** — the Freesoul offences exactly? Was the

qoliqoli engaged and any waiver properly obtained? Does the project cross the environmental law, or the rights and interests of the landowning unit? Each defect is a separate ground — for an objection, a regulator complaint, a court case, or a public campaign — and together they make a case that is hard to wave away. This is the layer that most often decides Fijian fights, because here a project that looked authorised is revealed to sit on an invalid lease, to lack the environmental approval the law demands, or to have carried on destroying a reef in open defiance of an order to stop. Work it methodically against each requirement: is there a valid TLTB lease; is there environmental approval covering every part of the works, including the foreshore and marine components; was the qoliqoli owning unit engaged; does the EIA honestly address the reef, the mangroves, and the fishing grounds? Where the answer is no, capture the proof — because each “no” is a separate ground a regulator, a court, the Board, or the public can act on, and in Fiji the land defect and the environmental defect are the ones that bite hardest.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Fijian cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Leases, Permits, and Their Paper Trail

- **The TLTB lease or licence** — and proof of the landowning mataqali's involvement, or its absence. A dealing in iTaukei land made without TLTB consent is null and void, so this document, or its lack, is often decisive.
- **The EIA and environmental approval** — read the EIA for what it understates about the reef, the mangroves, the water, and the fishing grounds, and check whether foreshore and marine works were approved at all. A missing or defective approval is the Malolo defect.
- **Any fishing-rights waiver** — for coastal and marine projects, whether the qoliqoli owning unit was engaged and a waiver properly obtained through the iTaukei Lands and Fisheries Commission.
- **The mining lease and its terms** — for a mineral project, the State-granted lease, the royalty arrangements, and the environmental conditions attached.
- **The proponent's details** — the developer or company, its owners and financiers, its partners, and its record elsewhere.

How to Get Them

Land records are held by the **TLTB** and the **iTaukei Lands and Fisheries Commission**; environmental approvals by the **Department of Environment**; mining leases by the ministry responsible for minerals. Use requests to the relevant office to obtain what is not volunteered; a refusal or silence is itself evidence. Work with the **provincial office and the vanua**, which hold local knowledge and standing a lone objector lacks, and with **environmental and legal NGOs and university experts**, who hold expertise, testing capacity, and records a lone community cannot assemble. Move early: an objection entered while the EIA is under review, and reef and mangrove baselines taken before the works begin, carry far more weight than the same point made later — and a stop notice sought the moment unlawful works start can prevent the very destruction a later case would only punish. A practical note: pair every photograph and reef sample with a date and a location, and keep duplicates in more than one place, so the evidence stands up when the developer's lawyers dispute it and survives if a phone or a file is lost. The satellite before-and-after is especially powerful because it cannot be argued away — at Malolo it showed the channel and the vanished mangroves in a single pair of images.

The Ground Evidence

- **Dated, geotagged photographs and video** of the site, the works, the cut reef, the cleared mangroves, the discharge, and the affected land and water.
- **Satellite before-and-after** from freely available imagery — at Malolo, the clearest proof of the channel and the lost mangroves.
- **Reef and water data** — sedimentation, turbidity, coral death, lost fish and shellfish — mapped to the fishing grounds and the village that depends on them; marine scientists and universities can help.
- **Mangrove and coastal survey** — the extent cleared, the area's role in fisheries and storm protection.
- **Livelihood and food evidence** — testimony and, where possible, records of lost catch, lost income, and threatened food security.
- **Maps** overlaying the project, its discharge, and the affected reef, mangroves, and qoliqoli on the village and its fishing grounds.
- **Testimony** — from villagers, fishers, elders, chiefs, and independent experts.

Organise It So It Persuades

Keep a **master timeline** of the lease, the EIA, the approvals, the works, and every incident, stop notice, and deadline — the spine of any court case or campaign, and the record that at Malolo showed a company working on despite orders to stop. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a villager, a lawyer, a chief, an environment officer, a journalist, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the developer's lawyers challenge it. In a fight that can run for years, the community with the better-kept file — above all the clearest before-and-after of the reef and the mangroves — is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE THROUGH THE VANUA AND BEYOND

Evidence and law do not stop projects on their own. Organised people do — and in Fiji that organisation runs through the **vanua**: the communal, chiefly structure of the mataqali, the yavusa, the village, and the district. A united vanua is the single greatest determinant of a Fijian campaign's strength; a divided one is a developer's best friend.

Phase 1: The Landowning Unit and the Core

Start where the power is: the **landowning mataqali**. If the project sits on your clan's land, your unit's position on the lease is a lever few communities anywhere possess. Bring the mataqali together, hear every voice, and seek a clear, collective stance — because a developer's first move is always to find or create division within the landowning unit, offering money or jobs to some while others bear the harm. Around that unit, build a small, committed core of five to fifteen people who will carry the work, with roles assigned: land and lease, documentation, environmental and legal liaison, vanua and chiefly liaison, media, and village liaison. Agree on the goal — the lease withheld or conditioned, the project stopped, the reef and qoliqoli protected — and on what you will and will not accept. Take time over this, because in Fiji the developer's surest path to victory is not defeating the mataqali but dividing it — a job here, a payment there, a promise to a few families while the harm falls on all. A landowning unit that has talked things through, heard every voice, and reached a genuine collective stance is far harder to split than one that has not, and that early, patient unity is worth more than any later tactic.

Phase 2: The Vanua and the Coalition

Then widen deliberately, through the structures that carry legitimacy in Fiji. Bring in the **Turaga ni Koro** and the village, the **wider yavusa and vanua**, the **district chief and the Roko Tui**, and the **provincial council**, so the project meets not a handful of objectors but a united community speaking through its own institutions. Reach the **qoliqoli owning unit** if the coast is affected. Then the **allies with capacity** — environmental and human-rights NGOs, church networks, university scientists and marine experts, legal-aid and public-interest lawyers, and the regional and international organisations that follow Pacific land, reef, and human-rights issues. Malolo drew its power from exactly this breadth — landowners, neighbours, a regulator, the courts, and the international press in one effort — which is precisely the spread a winning campaign needs.

A worked coalition example. Facing a coastal resort on customary land, the affected mataqali and the village form the base; the chiefs and the provincial council lend authority; the qoliqoli owners add the marine-rights lever; scientists document the reef and mangrove harm; environmental and legal NGOs bring capacity; and national and international press raise the profile and reach the investors and the tourism brand. No single group could have carried it; together they cover the land, the sea, the science, the law, the legitimacy of the vanua, and the world's attention — the model that beat Freesoul.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm the vanua already keeps. Give people concrete, finishable tasks. Mark small wins — a united mataqali stance, a stop notice issued, a batch of reef data, a wave of coverage. Rotate the exhausting roles. Keep the landowning unit together above all, since division is the developer's surest route to victory, and keep the chiefs and the provincial council informed so the vanua speaks with one voice. Guard, too, against the quiet inducement — the job, the payment, the promise — that peels away support one family at a time; answer it openly, within the vanua, with the shared stake in the land, the reef, and the future the whole community holds.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for village meetings, provincial councils, EIA consultations, and peaceful, well-documented gatherings. Let the **chiefs and the landowning unit** speak, so the project's backers see they face not scattered complaints but a united vanua. Make the fight a national story and, where the reef and the tourism brand are at stake, an international one. The point is not spectacle; it is to demonstrate, to the Board, the Department of Environment, the courts, the government, and the investors, that the community, the vanua, and the public are united, watching, and not going away — the unity that, at Malolo, turned a destroyed reef into a landmark conviction.

STEP 4: LEGAL CHALLENGES — THE LEASE, THE PERMIT, AND THE COURTS

Fijian law gives communities real tools, and Malolo proved they can defeat even a powerful, well-funded developer. You do not need a final ruling to win with them: a stop notice, a court filing, or a regulator complaint halts a project, forces disclosure, and creates leverage and headlines. Engage lawyers and the environmental NGOs early — but understand the tools yourself.

The Land and the Lease

The first lever is the land itself. A project on **iTaukei land** needs a valid **TLTB lease or licence**; a dealing made without the Board's consent is, the courts have held, **null and void**. The High Court has applied this strictly: a purported lease of iTaukei land without the Board's approval has no legal effect at all. For a community, that means a project which skipped or fudged the proper land dealing may be standing on nothing — a foundation that can be challenged at its root. If your landowning mataqali did not properly consent, or the Board's process was defective, that is a fundamental challenge to the project's right to be on the land at all. Press the TLTB, which is meant to protect landowners' interests, and be ready to go to court if a lease was granted improperly. This lever is strongest where the mataqali is united; it is why holding the landowning unit together is the campaign's first task.

The Environmental Law and the Regulator

The second lever is the one that convicted Freesoul: the **Environment Management Act 2005**. Significant projects need an **EIA and environmental approval**, and foreshore and marine works need approval too. Object substantively while the EIA is under review, putting your strongest reef, mangrove, and water evidence on the record. If a project proceeds without approval, or in breach of it, complain to the **Department of Environment**, which can issue a **prohibition notice** — and, as at Malolo, a company that ignores such a notice and destroys a reef can be **prosecuted and convicted**, with the maximum fine the law allows. At Malolo the fine was one million Fijian dollars, the highest the Act permits, and the court noted the cost of repairing the damage was even greater; the judge could not jail anyone only because the Act's prison terms apply to individuals, not companies. The lesson for a developer — and for you — is that the environmental law is not a formality to be paid off cheaply, but a real criminal exposure. That exposure is a lever in your hands well before any trial: the mere prospect of prosecution, a revoked approval, and the reputational ruin that follows a conviction can bring a developer to the table, slow a project, or persuade a financier to walk away. You do not have to win a criminal case to make its shadow work for you. This is a fast, powerful, inexpensive lever, and often the decisive one for surface and coastal projects.

The Courts

Fiji's **High Court** can enforce both the land rules and the environmental law, review the legality of leases and approvals, and — crucially — **order unlawful works stopped**, as it did at Malolo with successive stop orders. A well-built legal case forces disclosure, creates delay, halts destruction, and builds the record, and it can end, as Freesoul did, in a conviction and a penalty that deters the next developer. Be realistic about time and cost, but know that the courts here have shown they will act.

Minerals: The Hard Case

For a **mineral project**, the levers change. The **State owns the minerals**, and a mining lease is a national decision; customary ownership will not veto it, and landowners' formal power is limited to consultation and a **royalty share** under the Fair Share of Mineral Royalties Act. Here your realistic aims are to press for genuine consultation, the strongest possible environmental conditions and EIA scrutiny, a fair royalty, and delay — and to build the record and the public

pressure that can still, over time, hold a mine at bay, as the long Namosi stalemate suggests. It is an honest hard case, and this guide will not pretend otherwise.

Where to Turn and With Whom

Land challenges engage the **TLTB** and the courts; environmental objections and complaints go to the **Department of Environment**; fishing-rights questions to the **iTaukei Lands and Fisheries Commission**; and unlawful works to the **High Court**. Get help early: Fiji's environmental and legal NGOs, legal-aid and public-interest lawyers, and university experts know exactly these procedures and can advise on the strongest ground, the deadlines, and — vital — how to get a **stop notice or court order before the reef is cut and the mangroves are gone**. Help engaged while the EIA is live, and the moment unlawful works begin, is worth far more than help sought after the destruction is done.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a judge, an environment officer, a chief, a journalist, an investor, and the vanua itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a developer cut a channel through the reef and cleared the mangroves the village fishes, with no environmental approval for the foreshore works. That one fact becomes:

- **A land-and-vanua argument:** the developer is destroying the mataqali's inheritance and the reef the vanua depends on, without the community's true consent — the language that unites a landowning unit.
- **A legal argument:** the foreshore works proceeded with no environmental approval, in breach of the Environment Management Act, and possibly on a defective lease — grounds for a stop notice, a prosecution, and a court challenge.
- **A regulator argument:** an unauthorised development causing substantial environmental harm, demanding a prohibition notice and enforcement — the Malolo path exactly.
- **A media argument:** a foreign developer bulldozing a pristine reef and a village's fishing grounds to build a casino — a vivid, resonant story.
- **An international argument:** a project trashing a reef in a country whose brand and economy are built on unspoiled nature, exposing its investors and Fiji's tourism reputation — the frame that drew the world to Malolo.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Fiji the arguments that most often decide things are the **land-and-vanua** one, because it unites the owners, and the **environmental-law** one, because it has teeth. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the court file and a claim made in the village can be proven in the reef data; consistency across audiences is itself persuasive.

Match the Argument to the Audience

The courts and the Department of Environment want the illegality framed precisely against the specific rule — the Environment Management Act, the EIA requirement, the lease conditions, the requirement of TLTB consent — with the documents, the reef and mangrove data, and the timeline that prove it.

The TLTB and the land authorities respond to the interests of the landowners they are meant to protect — a defective consent, a lease against the mataqali's wishes, harm to the owners' inheritance.

The vanua and the chiefs respond to the shared stake in the land, the reef, and the future, and to the duty to protect what belongs to the whole community and the generations to come.

Journalists need a specific, verified, human story with a hook: a named village and reef, a named developer, a dated and documented harm, a live decision.

Investors and the tourism brand respond to reputational and legal exposure — a project destroying the very nature Fiji sells to the world, tied to a named company and its financiers.

The vanua itself needs to see that the fight is winnable and shared, so it holds together through the years a fight can take. Show it the small, concrete wins — a united mataqali stance, a stop notice issued, a batch of reef data, an ally who wrote — and answer the quiet inducements openly; a community that can see progress and feels its unity holding is a

community that endures, and in Fiji that endurance, more than anything, is what wins.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of a project, reaches officials and the Board, reaches the investors and the tourism brand your letters cannot, protects a community by making its fight visible, and can turn a local struggle into a national and international cause. Malolo is the proof: it was the reporting — including by journalists briefly arrested for asking questions — that drew international attention, saw the developer's environmental approval revoked, and helped carry the case to a landmark conviction. The two journalists were detained after going to the company's office in Suva to put questions to its director, and were released the next day after the Prime Minister intervened and publicly called the company's conduct deeply concerning — a vivid illustration of how international attention can turn a local fight into a national embarrassment for a developer, and of how visibility protects the people asking hard questions.

Build the Story

Reporters need specifics: a named place and stake, a dated and documented harm, and a live decision. "A project threatens the environment" is not a story; "a foreign developer cut a channel through a pristine reef and cleared a village's mangroves to build a casino, without the environmental approval the law demands" is. Lead with your strongest verified fact — the cut reef, the lost mangroves, the satellite before-and-after — and offer a human voice: a fisher, an elder, a chief, a scientist. In Fiji the reef-and-village story, set against the country's image of unspoiled nature, is uniquely powerful.

Reach the Right Outlets

Work outward in rings. **Local and community channels** first — the village, the vanua, the provincial networks. Then **national outlets** — Fiji's newspapers, television, and radio — which carry the story into national politics. Then, because Fiji's reef and brand resonate globally and its projects often rest on foreign investment, **international and regional media and environmental networks**, which reach the investors, the tourism market, and the world; Malolo became an international story precisely this way, through Pacific and international outlets. Feed each ring what it needs, and let coverage in one pull in the next. In Fiji the **international ring is especially potent**, because the country's economy and image depend on the very nature a destructive project harms. It is worth identifying the specific national reporters who cover the environment and land, and the regional and international correspondents and outlets that follow Pacific reefs, tourism, and human rights; a journalist who already knows the terrain needs less briefing and carries more weight, and a single vivid, well-sourced story — a reef cut open, a village's fishing grounds ruined — can move opinion and reach investors more than months of quieter effort.

Sustain It, and Keep It True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the reef data, the lease challenge, the regulator complaint, the court case, the international angle — so there is always a next hook, and build your own record (a simple page, a growing album of dated photographs, video, and satellite images) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the developer's lawyers can cost credibility you cannot rebuild. Verified, specific, reef-and-village-centred, and relentless — that is the coverage that shifts outcomes here.

EMAILS & LETTERS

Written communications are how you object, demand, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the land, the environmental law, and the harm.

8A. Objection at the EIA / Environmental Approval Stage

To: the Department of Environment **Subject:** Objection — environmental approval, [project] at [location]

As a community/person affected by [project] at [location], we object to its environmental approval. Our grounds, with evidence: (1) the EIA [understates/omits] the harm to [the reef/mangroves/fishing grounds] our village depends on; (2) [the foreshore and marine works are not covered by any approval]; (3) [the qoliqoli owning unit was not properly engaged]. We attach photographs, satellite images, and reef and water data. We request that approval be **refused**, or granted only on strict conditions, and that our objection be formally answered.

8B. Complaint / Request for a Prohibition Notice (unlawful works)

To: the Department of Environment **Subject:** Unauthorised development causing environmental harm — [project]

We report that [developer] is carrying out development at [location] [without environmental approval / in breach of its approval / in defiance of a prior notice], causing [reef/mangrove/water] harm: [dated, sourced facts]. We attach evidence, including satellite before-and-after. We request an urgent **prohibition notice** and enforcement, and, given the ongoing destruction, that the works be stopped immediately.

8C. Letter to the TLTB / Landowning Mataqali Concerns

To: the iTaukei Land Trust Board (copied to the provincial office) **Subject:** [Project] on our mataqali land — consent and protection of landowners' interests

We write as members of the landowning **mataqali** of [land] regarding [project]. We are concerned that [the lease/dealing was made without our true consent / the project harms our land, reef, and fishing grounds against our wishes]. We ask the Board, in its duty to protect the interests of iTaukei landowners, to [review the dealing / act on our concerns], and we request the relevant lease and consent records.

8D. Instructing Lawyers / Environmental NGO

To: a public-interest or environmental lawyer / an environmental NGO **Subject:** [Project] — legal options and an urgent stop

We believe [project] at [location] is unlawful because [it lacks environmental approval for foreshore works / the TLTB lease is defective / it breaches the Environment Management Act], and it is causing [ongoing reef and mangrove destruction]. We attach the lease, the EIA (or proof of its absence), our evidence, and our timeline, and seek advice on an **urgent stop (notice or court order)**, a **complaint to the Department of Environment**, and a **court challenge**. Time matters: the harm is being done now.

8E. Letter to an Investor / Financier / Brand Partner

To: [the investor / parent company / financier / hotel brand] **Subject:** [Project] — legal, reputational, and environmental risk

We write regarding your [investment in / financing of / partnership with] [company] in connection with [project] at [location]. The project [one-line stake — e.g. "is destroying a pristine reef and a village's fishing grounds, without the environmental approval Fijian law requires"], and our documented concerns include [the reef and mangrove harm, the missing approval, the landowners' opposition]. We remind you that Fiji has convicted a developer and imposed its maximum environmental fine for exactly such conduct. We ask you to weigh the legal, reputational, and environmental risk — and the damage to a brand built on unspoiled nature — and we are glad to share our evidence.

8F. Letter to a Chief / Provincial Council

To: [the Turaga ni Koro / the district chief / the Roko Tui / the provincial council] **Subject:** [Project] — protecting our vanua's land and reef

We write about [project], which threatens [the land/reef/fishing grounds] of our vanua at [place]. Our concern, briefly: [one or two specific grounds]. We ask the [chief/council], as the voice and guardian of the vanua, to [support our stand / help us speak with one voice / raise this with the authorities]. We welcome the chance to present our evidence to the [village/council].

8G. Email to a Reporter (National or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the reef / the village]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents, satellite images, and reef data] show [quantified finding — e.g. "a foreign developer cut a 100-metre channel through a reef and cleared a village's mangroves to build a casino, with no environmental approval"], with [a decision/hearing] due [date]. It is specific, verified, and it echoes the Malolo case that produced Fiji's first environmental conviction. I can share the full file and connect you with fishers, an elder, and a scientist. Could we talk this week?

8H. Access-to-Information Request

To: [the TLTB / the Department of Environment / the relevant ministry] **Subject:** Request for records — [project]

We request the following records for [project] at [location]: the TLTB lease or licence; the EIA and environmental approval; any fishing-rights waiver; [for a mine] the mining lease and royalty terms; and any prohibition or stop notices issued. These records concern land, a reef, and fishing grounds our community depends on. Please respond within a reasonable period; a refusal should state its legal basis.

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — the record of a demanded-but-refused stop notice, or an ignored objection, is itself evidence, and a documented pattern of continued works despite orders is exactly what convicted Freesoul. Keep them factual, specific, and grounded in the land, the environmental law, and the harm; attach your documentation, satellite images, and reef data; and route them, where you can, through the vanua and the chiefs, your lawyers and the NGOs, and — for the biggest fights — the national and international press. The reply, or the silence, becomes part of your record, and in Fiji that record feeds the levers that matter most: the landowning position, the environmental law and its regulator, the courts, and national and international attention.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Unite the landowning mataqali.** On iTaukei land, your clan's collective position on the lease is a lever most communities never have. Get the mataqali together, resist the developer's divide-and-buy, and agree a clear stance (8C, 8F).
- 2. Alert the Department of Environment — fast.** If works are unlawful or breaching approval, a complaint can bring a **prohibition notice** and stop the destruction (8B). This is the quickest powerful move, and it is what started the Malolo reckoning.
- 3. Object at the EIA stage and demand the documents.** A substantive objection and a records request (8A, 8H) put your grounds on the record and can force disclosure and conditions.
- 4. Document the reef and the mangroves now.** Dated photos, video, and freely available satellite before-and-after (Step 2) are, as at Malolo, the most devastating evidence you can gather — and they must be captured before the damage is complete.
- 5. Reach an environmental NGO or a lawyer.** They can seek an urgent **stop order** and bring capacity a lone village cannot (8D).
- 6. Engage the chiefs and the qoliqoli owners.** The vanua's authority and the marine-rights lever add weight the developer cannot ignore (8F).
- 7. Reach the press.** A vivid reef-and-village story reaches the investors and the tourism brand and protects the community (8E, 8G).

Do only the first three and you will have united the owners, alerted the regulator, and put your grounds on the record — the exact foundation the Malolo villagers built on. Then come back and read the rest. Even the shortest version has a spine: the land, the environmental law, the record.

WHEN THE SYSTEM IS TILTED

Fiji's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The clearest tilt is the **mineral rule**: the State owns the minerals, so for a mine customary ownership is not a veto, and a mining lease is a national decision in which landowners hold consultation and a royalty share, not a refusal — the long, unresolved Namosi story. At **Namosi**, in the interior of the main island, a significant copper deposit has drawn prospectors since the 1930s, and mataqali landowners have long objected — pointing to tailings spills that killed fish and prawns and fouled their rivers, and complaining that the Board leased their land to miners against their wishes. Some who took a stand were even taken to court and jailed. Yet because the minerals are the State's, the community's power has been to resist, delay, and demand better terms rather than simply to refuse — and, remarkably, that resistance has kept the mine out of the ground for the better part of a century. The **TLTB is a state-appointed trustee**, and landowners have complained it leased their land against their wishes, so the "consent" that protects you can also be exercised over your head. The **foreshore and seabed are vested in the State**, so qoliqoli owners hold fishing rights, not ownership, and a long-promised transfer of ownership never came. And Fiji's history of **coups and political upheaval** has, at times, narrowed the space for media and civil society. Where these tilts bite, the ordinary process gives less than it should — but real levers still reach past them.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

Customary land is still leverage. Even mediated through the Board, the fact that the community owns the land, and must in some form be dealt with, is a starting position most of the world's communities do not have.

The environmental law has teeth for everyone. The Environment Management Act applies to a mine as much as a resort; the EIA, the Department of Environment, and the prohibition notice are levers that do not depend on owning the minerals.

The vanua's unity is outside the State's control. A landowning unit and a vanua that hold together, and speak through their chiefs and provincial council, are a social fact no permit can override and no developer can easily divide.

Attention is outside the State's control. The press, the tourism brand, regional and international networks, and the reputational stakes of foreign investment can all be reached past a tilted domestic process — as Malolo showed.

The record endures. What you document — above all the before-and-after of the reef and the land — outlasts a bad moment and can convict a developer, condition a project, or power the next fight.

The Honest Frame

So the honest frame for Fiji is genuinely hopeful, with clear limits named. On **customary land**, against a **surface or coastal project**, with a **united vanua** and an **environmental defect**, Fijian communities hold a strong and distinctive hand, and Malolo shows they can stop even the country's biggest developer and see it punished. Against a **State-backed mineral project**, that hand is far weaker, and the realistic aims become consultation, conditions, a fair royalty, delay, and the record. So diagnose your project honestly: know whether the minerals or the surface is at stake, hold the landowning unit together, lean on the environmental law and the courts, engage the qoliqoli and the vanua, reach the world — and where the mineral rule blocks a veto, fight for the best terms, the strongest conditions, and the longest delay, knowing that even Namosi has been held off for generations.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not through honest error but through undue influence — a lease pushed through against the mataqali's wishes, an EIA waved past its defects, works allowed to continue in defiance of the law, a decision that serves a private or political interest rather than the community. When that is what you face, your strategy shifts: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. A **lease granted despite the landowning unit's opposition**; an **EIA approved despite obvious defects**; **works allowed to continue after a stop notice**, as at Malolo, where a company carried on despite orders; **money and jobs offered quietly to split the mataqali**; a **regulator that looks away**; and **pressure or intimidation aimed at objectors or journalists** — recall that reporters exposing Malolo were briefly arrested. One anomaly may be error; a pattern is capture.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. **Officials, and at times the Board and local decision-makers**, can be aligned behind a favoured project. But even then, some bodies and audiences are far harder to control: the **courts**, which at Malolo convicted a developer regardless of its backing; the **independent and international press**; **environmental and legal NGOs**; the **chiefs and the provincial councils**, whose authority is their own; **foreign investors and hotel brands** answerable to their own reputations; and the **watching public**, for whom a trashed reef is a powerful cause. Undue influence thrives on darkness and on staying local; your task is to lift the matter into the light — and, in Fiji, out to the courts and the world.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the lease against the owners' wishes, the defective EIA, the works continued in defiance of orders, the pressure on objectors — and take it, with evidence, to the bodies and audiences beyond its control: the courts, the Department of Environment, the independent and international press, the NGOs, the chiefs and provincial councils, and the investors and brands. Pair the exposure with the environmental case and the land case, so the wrongdoing and the harm surface together. And protect yourself: keep the work collective and within the vanua, document any threat or intimidation, involve lawyers and NGOs, and — as the Malolo reporters' experience shows — never underestimate how far a cornered developer will go, or how much protection visibility provides.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight — which in Fiji can move fast when a stop notice is needed, and run for years when a lease or a mine is contested.

Early (Weeks 0-8): The Land, the Regulator, and the Record

Pin down whose land and qoliqoli the project sits on, what it needs, and where the defect lies (Step 1). Unite the **landowning mataqali** and root the campaign in the **vanua** (Step 3). Move at once on what is urgent and cheap: if works are unlawful, **complain to the Department of Environment and seek a stop** (8B) before the reef is cut; **object at the EIA stage and request the documents** (8A, 8H); and **begin documenting the reef, mangroves, and site** (Step 2), including satellite before-and-after. Reach an **environmental NGO or lawyer** early (8D). This phase can, as at Malolo, halt the destruction before it is complete.

Middle (Months 2-24): Escalate on Every Front

Hold the vanua together and widen the coalition through the chiefs and provincial council (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate as the facts warrant — the **court challenge or stop order**, the **regulator's enforcement**, the **lease challenge**, the **qoliqoli lever** (Step 4). Expose any corruption to the courts, the press, and the world. Reach the **investors and the tourism brand** (8E). Build the media drumbeat from local to national to international (Step 5). Each front feeds the others. Do the fast, time-sensitive things first — a stop notice sought, reef baselines taken — because those chances do not return once the damage is done. And sequence the moves so they land when they bite hardest — the regulator alerted and a stop sought the instant unlawful works begin, the reef baseline taken before the channel is cut, the objection filed while the EIA is open, the mataqali united before the developer can divide it — because in Fiji, as Malolo showed, the fights are won by those who move early, hold together, and then endure.

Later (Months 6-48+): Sustain, and Judge Success Honestly

Sustain the vanua's unity against burnout and inducement; keep the record and the coverage alive. Pursue what is achievable — a **project stopped, a lease overturned, an approval refused or conditioned, a developer**

convicted and fined, the reef and qoliqoli protected — and, for a mineral project, the **best consultation, conditions, royalty, and delay** you can win. Judge success honestly. Sometimes it is a project stopped and a developer punished, as at Malolo. Sometimes it is a mine held off for years, as at Namosi. Both are victories worth the fight.

The Shape of a Campaign

WEEKS 0-8 Unite the mataqali | Alert the regulator + seek a stop | Object at EIA + request docs | Document reef & mangroves
MONTHS 2-24 Hold the vanua | Arguments | Courts + regulator + lease | Investors + international | Media
MONTHS 6-48+ Sustain | Win a stop / conviction / conditions / delay | Protect the reef and the land for the future

FINAL ASSESSMENT

Fiji gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. **Customary land ownership** gives Fijian communities a starting hand few in the world hold: around nine-tenths of the country is theirs, communally and inalienably, and no dealing is valid without consent. The **vanua** carries a legitimacy and unity a developer must reckon with. The **qoliqoli** adds a customary marine-rights gate for coastal projects. The **Environment Management Act and its EIA** give a formal point of scrutiny — and, as Malolo proved, real teeth, up to criminal conviction. And the **courts** enforce both the land and the environmental rules, and will halt unlawful works. These are the levers that let the villagers of Solevu and their neighbours stop Fiji's largest planned resort and win the nation's first environmental conviction and its maximum fine.

The limits are just as real, and this guide names them. **Minerals belong to the State**, so for a mine customary ownership is not a veto and landowners hold only consultation and a royalty share — the unresolved Namosi story. The **TLTB is a mediated trustee** that has, at times, leased land against owners' wishes. The **foreshore and seabed are the State's**, so qoliqoli owners hold fishing rights, not ownership. And Fiji's history of upheaval has sometimes narrowed civic space. No guide should pretend these limits away; on a mine, in particular, the customary hand is weak.

So the realistic promise is this: **unite the landowning mataqali and the vanua; use the environmental law and the EIA; engage the qoliqoli for coastal projects; go to the regulator and the courts the moment the rules are broken; reach the nation and the world; and, where the minerals are the State's, fight for consultation, conditions, a fair royalty, and delay — running all of it together.** Do that, and on customary land against a surface or coastal project you can stop the project outright and even see its backers punished, as Malolo did; against a mine, you can shape it, condition it, delay it, and hold the line for years, as Namosi shows. Do it as the people of Malolo did — landowners, neighbours, chiefs, scientists, lawyers, and the press in one determined effort — and you can protect not only your own reef and land but a precedent that told every developer in Fiji that the law, and the community, will be answered.

A last word on endurance. The Malolo villagers did not win in a day; the reef was already scarred when the fine came down, and the fight for restoration goes on. The developer counted on their exhaustion and their smallness. Its advantage was money, foreign backing, and the assumption that a village could be ignored. Their advantage was the land that was theirs, a law with teeth, courts that would enforce it, a vanua that held together, and a story the world could not look away from. Play to that. Keep the file and the reef evidence, keep the mataqali and the vanua united, keep the record and the coverage alive, and treat every objection, every stop notice, every batch of reef data, every chief who stands with you, and every wave of attention as a brick in a wall a developer cannot climb.

The tools are here, and Fiji itself proved they can work: a village and its neighbours stopped the country's biggest resort and made an example of the company that tried to bulldoze past them. What decides the outcome, in the end, is method, endurance, and the unity of the vanua — and those you supply, as the mataqali and villagers of Solevu supplied them against the country's largest developer. Begin today, begin cheaply, and build from there — with the land that is yours, the law that has teeth, and the vanua that, held together, no developer can divide. Communities before you have stopped, conditioned, and held off what looked unstoppable — a reef defended, a developer convicted, a mine kept out of the ground for generations. What was won at Malolo — a united people, a law with teeth, and courts that enforced it, defeating the country's biggest developer and making an example of it — can be won again by any community that holds together and uses the tools this guide has laid out. What was won at Malolo can be won again. So can yours.